

Hira Khan v. Purvanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 18 September 2023 · 2023:AHC:179570-DB · Writ - C No. 22901 of 2023 · **Writ dismissed as infructuous after the grievance was redressed.**

HEADNOTE

Writ for a pre-paid electric connection dismissed as infructuous once counsel stated that the grievance stood redressed. The Court had earlier only directed that a fresh application moved within one week be processed as per the Electricity Act and the Electricity Supply Code, without construing any clause.

FACTUAL SUMMARY

Hira Khan petitioned the Allahabad High Court against Purvanchal Vidyut Vitran Nigam Ltd. after his pre-paid meter application was refused. On 16 August 2023 the writ was passed over. On 21 August 2023 the licensee said a fresh application for a pre-paid connection would be considered, and the Court directed that an application filed within a week under the Electricity Act and the Supply Code be processed as per law. On 18 September 2023 counsel stated that the grievance stood redressed and the cause no longer survived.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

Infructuous dismissal of a pre-paid connection writ

HOLDING

The writ was dismissed as infructuous on the petitioner's statement that the grievance over the pre-paid electric connection stood redressed. No clause of the Electricity Act or the Electricity Supply Code was construed; the earlier order only directed that a fresh application moved within one week be processed as per law. ¶ 2-3

PRINCIPLE TAGS

procedural-listing-no-construction

The matter was passed over, a fresh pre-paid connection application was directed to be processed as per law, and the writ was then dismissed as infructuous. No Supply Code clause was construed.

¶ 1-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER REFUSAL OF THE ORIGINAL PRE-PAID METER APPLICATION WAS LAWFUL

Left unexamined because the petitioner stated that the grievance stood redressed and the writ was dismissed as infructuous. ¶ 3